



File No.: EXP202300402

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated May 31, 2023, and based on the following

FACTS

FIRST: On May 31, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202300402, in which it was agreed to uphold the claim for the exercise of rights filed by A.A.A. against B.B.B. (hereinafter the respondent).

SECOND: The resolution now being appealed was duly notified to the appellant on June 15, 2023, as evidenced by the acknowledgment of receipt in the file.

THIRD: The appellant has submitted a recourse for reconsideration to this Spanish Agency for Data Protection, in which they express their disagreement with the resolution of this Agency. The claimant now appealing states in summary that the Agency has not been diligent in ensuring compliance with the requested right.

LEGAL GROUNDS

I

The Director of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Regarding the statements made by the appellant, it should be noted that this Agency upheld the claim because it considered that the respondent had not substantiated the response that it is obliged to provide to the claimant.

III

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Examined the recourse for reconsideration presented by the appellant, they express their dissatisfaction for not having obtained the requested recordings and for the treatment they have received from this Agency. We are faced with a request for the right of access based on recordings that have already been deleted due to the time elapsed from when they were deleted until they were requested, and in light of the lack of substantiation from the respondent that responds to this Agency but not to the claimant. Given these facts, this Agency upheld the claim emphasizing that the respondent must always respond, even if it is to deny the request with justification. Therefore, although the claimant expresses their dissatisfaction for not being able to obtain what they requested (the recordings are deleted), this Agency upheld the claim requiring the respondent to provide a response, and this recourse is dismissed.

In view of the cited provisions and others of general application,
the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the recourse for reconsideration filed by A.A.A. against the Resolution of this Spanish Agency for Data Protection issued on May 31, 2023, in file EXP202300402.

SECOND: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process, a contentious-administrative

appeal may be filed within two months from the day following the notification of this act, as provided in Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of the aforementioned legal text.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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